

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Shelton	Team: Squad #06	CCRB Case #: 201900777	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Thursday, 01/24/2019 1:30 PM	Location of Incident: Over the phone with 79th Precinct and PSA 3	18 Mo. SOL 3/10/2021	Precinct: 79
Date/Time CV Reported Fri, 01/25/2019 2:04 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/25/2019 2:04 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Aaron Husbands	04274	965752	079 PCT
2. An officer			PSA 3

Officer(s)	Allegation	Investigator Recommendation
A . POM Aaron Husbands	Off. Language: Police Officer Aaron Husbands made remarks to § 87(2)(b) based upon the perceived mental health of § 87(2)(b)	A . Unsubstantiated
B . POM Aaron Husbands	Abuse: Police Officer Aaron Husbands refused to provide his name to § 87(2)(b)	B . Unsubstantiated
C . POM Aaron Husbands	Discourtesy: Police Officer Aaron Husbands acted discourteously toward § 87(2)(b)	C . Unsubstantiated
D . An officer	Discourtesy: An officer acted discourteously toward § 87(2)(b)	D . Officer(s) Unidentified

Case Summary

On January 25, 2019, § 87(2)(b) filed this complaint over the phone with the CCRB.

On January 24, 2019, at approximately 1:30 p.m., § 87(2)(b) called the 79th Precinct and was connected to the telephone-switchboard (T/S) operator, PO Aaron Husbands. § 87(2)(b) explained harassment she was experiencing by her ex-boyfriend. PO Husbands told her, “I don’t take reports from crazy people” (**Allegation A: Offensive Language,** § 87(2)(g)). § 87(2)(b) asked for PO Husbands’ name and he hung up on her without providing his name (**Allegation B: Abuse of Authority,** § 87(2)(g)). § 87(2)(b) immediately called PSA 3 and was connected to the T/S operator. § 87(2)(b) explained the same harassment situation to this officer. As she was speaking, the PSA 3 T/S operator hung up on her without saying anything (**Allegation D: Discourtesy,** § 87(2)(g)). No arrests were made and no summonses were issued regarding this incident. There was no video footage regarding this incident.

Findings and Recommendations

Allegation A – Offensive Language: Police Officer Aaron Husbands made remarks to

§ 87(2)(b) based upon the perceived mental health of § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Aaron Husbands refused to provide his name to

Allegation C – Discourtesy: Police Officer Aaron Husbands acted discourteously toward

§ 87(2)(b) stated that she called the 79th Precinct via the precinct’s public phone number and pressed either 0 or 9 to connect to the T/S operator (BR 01-02). When calling the 79th Precinct’s public number, pressing 0 connects to the T/S operator and pressing 9 repeats automated options for the caller, § 87(2)(g). PO Husbands answered the phone and stated his rank and name, though too quickly for § 87(2)(b) to comprehend. Despite this, PO Husbands was identified as the subject of these allegations via the T/S log from January 24, 2019, which confirmed that PO Husbands was the assigned T/S operator at the time of the incident (BR 03). § 87(2)(b) explained to PO Husbands about ongoing online harassment she was experiencing due to her ex-boyfriend hacking an online account of hers. § 87(2)(b) was very upset and began crying. PO Husbands laughed and told her, “I don’t take reports from crazy people.” § 87(2)(b) asked for his name so that she could report him. PO Husbands laughed again and then § 87(2)(b) heard two clicks on her phone, indicating to her that PO Husbands had hung up. When she looked at her phone’s screen, she was no longer engaged in a phone call.

PO Husbands had no specific recollection of this incident. However, he was familiar with § 87(2)(b) and multiple criminal complaint reports she had filed with the NYPD from two prior phone conversations he had with her (BR 04). On both occasions PO Husbands spoke to § 87(2)(b) she was upset and called to follow up on a complaint of harassment. PO Husbands looked up § 87(2)(b)’s complaints while on the phone with her and informed her that they had all been closed. § 87(2)(b) never provided any new information regarding her complaints. PO Husbands never called § 87(2)(b) “crazy” or discussed her mental health. PO Husbands did not recall if § 87(2)(b) ever asked for his name. PO Husbands never intentionally hung up on § 87(2)(b) and

concluded both conversations with § 87(2)(b) by saying goodbye. Though PO Ronald Liautaud appeared on the T/S log from 12:00 p.m. to 1:05 p.m., PO Husbands confirmed that he resumed T/S duties from 1:05 p.m. to 3:30 p.m.

§ 87(2)(g)

§ 87(2)(g)

Allegation D – Discourtesy: An officer acted discourteously toward § 87(2)(b)

After her call with PO Husbands, § 87(2)(b) immediately called PSA 3 via the service area's public phone number and pressed either 0 or 9 to connect to the T/S operator. When calling PSA 3's public number, pressing 0 connects to the T/S operator and pressing 9 repeats automated options for the caller, so the investigation determined that § 87(2)(b) pressed 0. A female officer with a Hispanic accent answered and identify herself. § 87(2)(b) recalled that she said, "Officer," but did not recall the name that the officer provided. § 87(2)(b) explained the online harassment and hacking she was experiencing. As she spoke, § 87(2)(b) heard two clicks. § 87(2)(b) asked, "Hello?," but received no response from the officer. § 87(2)(b) checked her phone's screen and saw that she was no longer engaged in a phone call.

PO Kathy Ovalle was initially identified as the subject officer as per the unfinalized roll call (BR 05) of this complaint but she testified that she had no T/S duties at the time of the incident (BR 06). She was completely unfamiliar with § 87(2)(b) and this specific incident. Though she was assigned to general stationhouse duties that did not include T/S duties from 7:00 a.m. to 12:30 p.m., she was re-assigned to patrol from 12:30 p.m. to 3:40 p.m. and was not inside the PSA 3 stationhouse at the time of the incident. PO Ovalle's testimony is consistent with her memo book entries on the date of the incident (BR 07).

The finalized roll call shows that PO Ovalle was assigned to T/S duties at the time of the incident (BR 08). No other officers are assigned to the T/S on the roll call and the desk officer is male. The T/S log for tour 2 on the incident date could not be located by PSA 3 (BR 09).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (BR 10).
- PO Husbands has been a member of service for one year and has not been named as a subject in any other CCRB complaints (see officer history).

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- On May 20, 2019, the New York City Comptroller's Office indicated that there were no Notices of Claim related to this complaint (BR 12).

Squad No.: 6

Investigator:	_____	<u>Inv. Benjamin Shelton</u>	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	<u>IM Jessica Peña</u>	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date